

Counterfactual Order Dissolving Stay and Releasing Mandate

Filed: September 15, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

Asterglen has notified the Court that it will not file the petition for a writ of certiorari described in its June 26 motion and does not oppose immediate issuance of mandate. Copper Kestrel and Meridian Silt likewise do not request continued withholding. The reason supporting the July 10 stay has ended before expiration of the ninety-day period, and no petition, extension request, or other order supplies an independent basis for delay.

The Court therefore DISSOLVES the stay effective September 15, 2026. Dissolution leaves the June 8 opinion and judgment unchanged. It does not decide whether the proposed certiorari question was substantial, determine the merits of Count I, or alter the district court's authority over Count II and Copper Kestrel's counterclaim after remand. The July 10 order remains part of the post-judgment history, but it has no continuing force after entry of this order.

The clerk shall record Asterglen's notice and serve this dissolution order on all parties. The district clerk shall be informed that mandate will issue under the release direction stated on the following page.

Immediate release following dissolution

The mandate is RELEASED for issuance today, September 15, 2026. The ordinary June 29 date passed while the timely stay request and later granted stay controlled the post-judgment posture. The July 10 grant was not a denial and did not begin a new seven-day period under Federal Rule of Appellate Procedure 41(b). No automatic date arose while that affirmative stay remained effective.

This order now ends the restraint and expressly directs present issuance. An additional seven-day delay is unnecessary because the Court is not denying the June 26 motion on September 15; it granted that motion in July and is dissolving relief after Asterglen abandoned the proposed petition. The clerk may therefore issue the mandate separately on the same date as this release.

The clerk shall transmit the June 8 opinion and judgment to the United States District Court for the Northern District of West Virginia together with the mandate. The appellate disposition remains dismissal and remand, and the judgment's costs provision remains in force. This release order adds no merits ruling and imposes no new condition on district proceedings. Electronic notice of dissolution and issuance shall be sent to counsel for Asterglen, Copper Kestrel, and Meridian Silt.

ENTERED BY ORDER OF THE COURT